

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JEREMIAH ARROYO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANTHONY GONZALEZ, Shield No. 23850, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,Defendants.
----- X**SUMMONS**

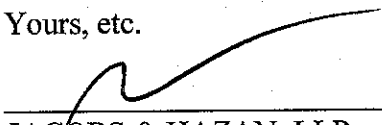
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 23, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Anthony Gonzalez, Shield No. 23850, 94th Precinct, Detective Squad, 100
Meserole Avenue, Brooklyn, New York 11222

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JEREMIAH ARROYO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section § 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 6, 2012, at approximately 6:00 a.m., plaintiff, Jeremiah Arroyo, while lawfully inside of his girlfriend's apartment located at 158 Hull Street, Brooklyn, NY, was subject to an unlawful search, detention, false arrest and false imprisonment by the defendant New York City police officers. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully searched, falsely arrest, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JEREMIAH ARROYO is a resident of the State of New York.

3. Defendant Police Officer ANTHONY GONZALEZ, Shield Number 23850, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer ANTHONY GONZALEZ, Shield Number 23850, was at all times relevant herein assigned to the 73rd Precinct.

5. Defendant Police Officer ANTHONY GONZALEZ, Shield Number 23850, is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On June 6, 2012, at approximately 6:00 a.m., plaintiff was lawfully present inside of his girlfriend's apartment located at 158 Hull Street, 1st Floor, Brooklyn, New York, when suddenly and without knocking or identifying themselves, the individually named defendant police officers unlawfully and forcefully broke down the front door of the apartment and entered without a warrant, probable cause, exigent circumstances, or any justification.

14. Upon unlawfully entering the apartment, defendants screamed at plaintiff in an aggressive and frightening manner to get on the ground.

15. Plaintiff complied with the defendant police officers' orders to get on the ground, but the defendant police officers proceeded to unlawfully handcuff and detain plaintiff, without probable cause or legal justification.

16. At no time were any illegal weapons, drugs, or contraband found in the apartment, on plaintiff's person, or in plaintiff's possession, custody, or control.

17. At no time did plaintiff violate any law, commit any crime, or violate the law in any way, nor did defendants have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

18. Nevertheless, plaintiff was falsely arrested by the defendants and transported against his will to the 73rd precinct in a NYPD vehicle.

19. The defendant police officers unlawfully searched, fingerprinted, photographed, and unlawfully detained plaintiff in a holding cell for many hours.

20. Eventually, on or about June 7, 2012, at approximately 6:00 a.m., plaintiff was transported by defendants to Kings County Central Booking where he was unlawfully fingerprinted, photographed, and placed in a filthy holding cell.

21. Plaintiff was released from Kings County Central Booking on June 8, 2012 at approximately 2:00 a.m., without being charged with a crime and without being arraigned, after the Kings County District Attorney's Office declined to prosecute plaintiff because there was insufficient evidence to prosecute him or to establish probable cause that he had committed any crime.

22. The individually named defendant police officers who were present for plaintiff's false arrest but did not physically touch plaintiff failed to intervene to prevent the false arrest and unlawful detention of plaintiff.

23. The other individually named defendant police officers who were present at the scene of the incident failed to intervene to prevent the unlawful search and detention of plaintiff, even though they knew or should have known that plaintiff was unlawfully arrested, without probable cause.

24. The unlawful search, false arrest, and false imprisonment, of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

25. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers search an apartment or home, find illegal

contraband is in the possession, custody or control of a particular occupant of the apartment, but arrest all occupants of the apartment/home even though only one of the occupants has constructive possession over an illegal substance and the officers lack probable cause to arrest anyone in the apartment, except for the one individual that possesses the illegal contraband.

26. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely arrest all occupants of an apartment that was searched pursuant to a search warrant, when there is reasonable suspicion and/or probable cause to arrest only one of the apartment's occupants, and there is a pattern, policy, custom or practice of New York City Police Officers arresting all occupants of an apartment that was searched pursuant to a search warrant, when there is reasonable suspicion and/or probable cause to arrest only one of the apartment's occupants.

27. This policy and practice directly caused the unconstitutional arrest of plaintiffs, as the officers did not have a factual basis to believe either plaintiff possessed illegal drugs, weapons or contraband when they arrested them.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth, Fifth Amendment and Fourteenth Amendment Rights

28. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.

29. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, without reasonable suspicion or probable cause in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

30. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

31. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.

32. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

33. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

34. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

35. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

37. Defendants lacked probable cause to search plaintiffs.

38. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

39. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

40. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

42. Defendants failed to intervene to prevent the unlawful conduct described herein.

43. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

FIFTH CAUSE OF ACTION

Municipal Liability Under 42 U.S.C. § 1983

44. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

46. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting all occupants of a home/apartment that is searched pursuant to a search warrant even though illegal contraband is only found in the possession, custody or control of certain specific occupants of the apartment/home and even though the officers lack a specific, articulable factual basis supporting probable cause to believe all of the apartment's occupants arrested committed a crime or possessed the illegal contraband found in the apartment/home, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to, unlawfully arresting individuals, without probable cause or legal justification for allegedly constructive possession of an illegal substance.

47. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

49. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

50. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were falsely arrested.

51. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

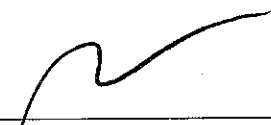
JURY DEMAND

52. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jeremiah Arroyo demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 23, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

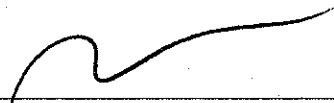
TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Anthony Gonzalez, Shield No. 23850, 94th Precinct, Detective Squad, 100
Meserole Avenue, Brooklyn, New York 11222

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 23, 2015



STUART E. JACOBS